

TENTATIVE RULINGS

DEPT C28

Judge Thomas S. McConville

August 3, 2026 at 2:00 p.m.

Court Reporters: Official court reporters (i.e., court reporters employed by the Court) are **NOT** typically provided for law and motion matters in this department. If a party desires a record of a law and motion proceeding, it will be the party's responsibility to provide a court reporter. Parties must comply with the Court's policy on the use of privately retained court reporters which can be found at:

- [Civil Court Reporter Pooling](#); and
- For additional information, please see the court's website at [Court Reporter Interpreter Services](#) for additional information regarding the availability of court reporters.

Tentative rulings: The court endeavors to post tentative rulings on the court's website in the morning, prior to the afternoon hearing. However, ongoing proceedings such as jury trials may prevent posting by that time. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted. The court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5228. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Appearances: Department C28 conducts non-evidentiary proceedings, such as law and motion hearings, remotely by Zoom videoconference pursuant to Code of Civil Procedure section 367.75 and Orange County Local Rule 375. Any party or attorney, however, may appear in person by coming to Department C28 at the Central Justice Center, located at 700 Civic Center Drive West in Santa Ana, California. All counsel and self-represented parties appearing in-person must check in with the courtroom clerk or courtroom attendant before the designated hearing time.

All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at <https://www.occourts.org/media-relations/aci.html>. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also are available at <https://www.occourts.org/media-relations/aci.html>. Those procedures and guidelines will be strictly enforced.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. Members of the media or public may obtain access to law and motion hearings in this department by either coming to the department at the designated hearing time or contacting the courtroom clerk at (657) 622-5228 to obtain login information. For remote appearances by the media or public, please contact the courtroom clerk 24 hours in advance so as not to interrupt the hearings.

Arguments: The court will allow arguments on the pending motions up to 10 minutes per side, but those arguments must not repeat arguments previously made in each parties' applicable briefs.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

#	Case Name	Tentative
50.	Hamid Roknian as Trustee of the Roknian Family Trust v. Foremost Insurance Company Grand Rapids, Michigan 2026-01554524	Defendants Foremost Insurance Company Grand Rapids, Michigan, and Farmers Insurance Group's demurrer to complaint is SUSTAINED with 10 days leave to amend as to the seventh cause of action for negligence, and otherwise OVERRULED. <u>Complaint in its entirety as alleged against Farmers.</u> Farmers demurs to the complaint in its entirety on the grounds that "Farmers Insurance Group" is "merely 'service name' for a group of insurance companies but is not a legal entity," as "explained in <i>Bell v. Farmers Ins. Exchange</i> (2001) 87 Cal.App.4th 805, 808 [<i>Bell</i>]...." (Dem. P&As at p. 6.) This argument fails because it ignores the allegations of the complaint. The complaint alleges "Farmers Insurance Group ... is a business entity engaged in the marketing, underwriting, and claims administration of insurance policies in California." (Compl. ¶ 3.) These are allegations of fact that the court must accept as true on demurrer. (See <i>Nolte v. Cedars-Sinai Medical Center</i> (2015) 236 Cal.App.4th 1401, 1406.) Farmers' reliance on <i>Bell, supra</i>, 87 Cal.App.4th at p. 808 to establish a contrary fact here is misplaced. Case law establishes legal rules and precedents, not the truth of facts in a new dispute. (See <i>Trope v. Katz</i> (1995) 11 Cal.4th 274, 284 ["'a decision is not authority for what is said in the opinion but only for the points actually involved and actually decided'"].) Further, <i>Bell</i> says nothing about whether "Farmers Insurance Group of Companies," as "a group of affiliated insurance companies," constitutes a legal entity or not; Farmers' legal existence was not at issue in that case. It therefore does not support defendant's position. (<i>Styne v. Stevens</i> (2001) 26 Cal.4th 42, 57-58 ["An opinion is not authority for a point not raised, considered, or resolved therein."].) <u>Sixth cause of action, violation of Bus. & Prof. Code, § 17200.</u> The complaint alleges facts sufficient to constitute the sixth cause of action for violation of Business and Professions Code section 17200 (UCL). Contrary to defendants' contentions, the claim seeks restitution and "<i>all other relief available under Business and Professions Code section 17200</i>," which includes injunctive relief. (Compl. ¶ 60; see Bus. & Prof. Code, §§ 17200, 17203.) A UCL cause of action may be predicated on an insurance bad faith claim, and a private litigant may seek both restitution and injunctive relief under such a claim. (<i>Zhang v. Superior Court</i> (2013) 57 Cal.4th 364, 381-382 &

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		fn. 10.) "Depending on proof of the nature and extent of the insurer's claims handling practices, the trial court [will] determine whether injunctive relief [is] appropriate" once the litigation reaches that point, and the failure formulate a specific injunction in the complaint does not render the claim susceptible to demurrer. (See <i>id.</i> at p. 381, fn. 10.) " '[A] demurrer tests the sufficiency of the factual allegations of the complaint rather than the relief suggested in the prayer[.]' " (<i>Ibid.</i>) <u>Seventh cause of action, negligence.</u> The complaint fails to state facts sufficient to constitute a cause of action for negligence. (See <i>Regents of University of California v. Superior Court</i> (2018) 4 Cal.5th 607, 618 [negligence elements]; see also <i>Benavides v. State Farm General Ins. Co.</i> (2006) 136 Cal.App.4th 1241, 1249-1253 (<i>Benavides</i>).) The alleged conduct at issue under this claim—i.e., "failing to conduct a reasonable investigation and ... unreasonably denying defense and coverage" within a month of receiving the claim, thereby causing plaintiff financial/economic harm (Compl. ¶¶ 15-17, 30-31, 61-64)—only gives rise to a tort claim for bad faith breach, not negligence. (See <i>Benavides</i>, at pp. 1249-1253.) Defendants shall give notice of this ruling.
51.	Mendoza v. Garden Grove Unified School District 2023- 01312531	Plaintiff Juan Mendoza's motion for leave to file first amended complaint is GRANTED. (See Code Civ. Proc., § 473, subd. (a)(1); <i>Atkinson v. Elk Corp.</i> (2003) 109 Cal.App.4th 739, 761.) Plaintiff is ORDERED to separately file and serve the proposed first amended complaint (Johnson Decl. at Ex. 1) within five court days. The first amended complaint must be filed as a separate document to ensure it is properly indexed in the record. Plaintiff shall give notice of this ruling.
52.	Bales v. Belenardo 2021- 01201005	Defendants John and Susan Belenardo's motion for attorney fees pursuant to Civil Code section 5975 is GRANTED in part. Civil Code section 5975, part of the Davis-Stirling Common Interest Development Act, provides that in an action to enforce the governing documents, the prevailing party shall be

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		awarded reasonable attorney's fees and costs. Ca. Civ. Code section 5975. For an award of attorney fees, the threshold requirement is that the underlying action must qualify as one to enforce the governing documents of a common interest development. Civil Code section 5975 awards attorney's fees and costs to the prevailing party in an action to enforce the CC&Rs of a common interest development. <i>Almanor Lakeside Villas Owners Assn. v. Carson</i> (2016) 246 Cal.App.4th 761. The prevailing party determination is made on a practical level, looking at which party achieved its litigation objectives. <i>Id.</i> at 773. If there is a prevailing party, the court shall award reasonable fees and costs. <i>Rancho Mirage Country Club Homeowners Assn v. Hazelbaker</i> (2016) 2 Cal.App.5th 252, 263. The court finds the Belendaros are the prevailing party in Phase I of the trial for purposes of section 5975 fees. The Bales achieved none of their objectives in Phase I. The Belenardos successfully maintained their easement, and the improvements located therein—succeeding on a practical level in this neighbor dispute. The court makes this finding while considering both the complaint, cross-complaint, and the relief each side sought. <i>Champir LLC v. Fairbanks Ranch Assn</i>, (2021) 66 Cal.App.5th 583, 592. Having reviewed the motion, including the hourly rate, hours billed, and description of the tasks performed, the court finds \$600 per hour is reasonable. The court reduces the number of hours claimed as follows: --\$18,960.00 for "sanction work." Section 5975 authorizes fees for the prevailing party in an action to enforce governing documents, not fees incurred in collateral sanctions proceedings. --\$8,940.00 for duplicative entries totaling 14.9 hours. --\$20,700 for non-Phase I work totaling 34.5 hours. The court does not find the number of hours billed on the remaining hours to be excessive. The case was actively litigated. By the time of the Phase I trial, there were over 800 docket entries. And plaintiffs' operative complaint at the time of the Phase I trial – the Third Amended Complaint-- consisted of 522 paragraphs over 87 pages with over 200 pages of attachments. While not all paragraphs or causes of actions related to Phase I, the breadth of the Third Amended Complaint demonstrates that plaintiffs were thoroughly

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		pursuing their claims. The Belenardos reasonably could respond in kind. The court has considered plaintiffs' request to further apportion fees and to apply a discount for "block billing." The court denies that request. The court awards fees of \$279,420.00. The Belenardos' evidentiary objections to the declarations are OVERRULED. The Bales' evidentiary objections are SUSTAINED as they relate to statements concerning the disciplinary proceedings and exhibits concerning Kamath, and otherwise OVERRULED. The Belenardos shall give notice of this ruling.
53.		
54.	Elavon, Inc. v. Creative Arcades LLC 2026- 01564124	The motion of defendants Creative Arcades LLC and Brian Horowitz for an order compelling arbitration of the claims brought by plaintiff Elavon, Inc., and staying the court proceedings pending the resolution of the arbitration is GRANTED. On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party thereto refuses to arbitrate such controversy, the Court must order the petitioner and respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists unless it determines that: (1) the right to compel arbitration has been waived by the petitioner; (2) grounds exist for the revocation of the agreement; or (3) a party to the arbitration agreement is also a party to a pending court action or special proceeding with a third party arising out of the same transaction or series of related transactions and there is a possibility of conflicting rulings on a common issue of law or fact. Code Civ. Proc. § 1281.2. Here, plaintiff does not deny the existence of the provision for arbitration or contend that it is not enforceable. Rather, it contends that it chose to file the action in court instead of seek arbitration because of the simple nature of the claim. The parties are ORDERED to arbitrate their claims in accordance with their agreement. Plaintiff shall commence the arbitration within 30 days of this order.

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		The Court sets a review hearing concerning the status of the arbitration for January 29, 2027 at 9:00 a.m. in Department C28. Five days before the hearing, the parties are ordered to file a joint status report. The Court orders this matter STAYED pending completion of the arbitration or further order of the Court. The case management conference scheduled for September 21, 2026 is VACATED. Defendants shall give notice of this ruling.
55.	Hermann v. American Honda Motor Co., Inc. 2026-01563133	Defendant American Honda Motor Company, Inc.'s motion to compel arbitration and staying the court action pending resolution of the arbitration is DENIED. On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party thereto refuses to arbitrate such controversy, the Court must order the petitioner and respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists unless it determines that: (1) the right to compel arbitration has been waived by the petitioner; (2) grounds exist for the revocation of the agreement; or (3) a party to the arbitration agreement is also a party to a pending court action or special proceeding with a third party arising out of the same transaction or series of related transactions and there is a possibility of conflicting rulings on a common issue of law or fact. Code Civ. Proc. § 1281.2. Under section 1281.2, a trial court must grant a motion or petition to compel arbitration only "if it determines that an agreement to arbitrate the controversy exists." <u>Gamboa v. Northeast Community Clinic</u> (2021) 72 Cal.App.5th 158, 164. The court makes this determination in a summary process. <u>Id.</u> The trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court's discretion, to reach a final determination. <u>Id.</u> The burden of persuasion is always on the moving party to prove the existence of an arbitration agreement with the opposing party by a preponderance of the evidence. <u>Id.</u> Because the existence of the agreement is a statutory prerequisite to granting the motion or petition, the party seeking arbitration bears the burden of proving its existence by a preponderance of the evidence. <u>Id.</u> at 164-165.

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		Defendant contends plaintiff entered into two agreements for arbitration that require the dispute be resolved through arbitration – a lease and the warranty booklet. However, defendant is not a party to the lease, copies of which are attached to the moving papers as Exhibit A and to the opposing papers as Exhibit 1. The lease is between plaintiff and DCH Tustin Acura, which is a dealership. Although defendant contends in the reply that it should be permitted to enforce the arbitration provision in the lease as the assignee of the dealership, the parent company, or a third party beneficiary, the lease has nothing to do with the warranties, which arise independently. As stated by the court in <u>Ford Motor Warranty Cases</u> (2023) 89 Cal.App.5th 1324, 1335, “California law does not treat manufacturer warranties imposed outside the four corners of a retail sale contract as part of the sale contract.” Thus, defendant cannot compel arbitration based on the agreement between plaintiff and DCH Tustin Acura. The court is not persuaded by defendant’s argument that the above holding does not apply to leases. Defendant cannot compel arbitration based on the lease. The other provision for arbitration relied on by defendant is in the warranty booklet, a copy of which submitted by defendant as Exhibit B. However, even if the booklet were given to plaintiff, defendant does not show that plaintiff agreed to the terms of the arbitration provision in the booklet. In other words, defendant has not shown that a contract to arbitrate was formed with the plaintiff simply because plaintiff was given the booklet. Defendant has not met its burden of showing that an agreement to arbitrate the claims in the complaint was entered into by the parties. The motion is DENIED. Defendant shall give notice of this ruling.
56.	Humphrey v. Nissan North America, Inc. 2025-01496999	Defendant Nissan North America, Inc.’s motion to transfer venue is DENIED without prejudice. Defendant seeks to transfer venue to the San Bernardino County Superior Court. Although the notice of motion does not cite any code sections as authority for the motion, defendant’s memo of points and authorities indicates that the motion is brought under

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		subdivision (c) of Code of Civil Procedure section 397. That subdivision authorizes the Court, upon noticed motion, to change the place of trial “[w]hen the convenience of witnesses and the ends of justice would be promoted by the change.” (Defendant also cites subdivision (b) of Code of Civil Procedure section 395, but that code section does not authorize a motion to change venue.) Although declarations in support of a motion for change of venue are not required by statute, the California Supreme Court has articulated the required showing to be made: declarations that name each witness, along with the substance of their testimony, and facts demonstrating why the witness’s attendance at trial will be inconvenient and how justice will be served. <u>Peiser v. Mettler</u> (1958) 50 Cal.2d 594; see also <u>Juneau v. Juneau</u> (1941) 45 Cal.App.2d 14, 16; Cal. Rules of Ct. 3.1306(a). Here, defendant has failed to make the required evidentiary showing. The denial is without prejudice to defendant compiling the requisite evidence, and refiling the motion. The order to show cause is discharged. The trial date is October 18, 2027 at 9:30 a.m. in Department C28. The parties shall comply with this court’s standing order regarding trial preparation. Should any party desire a jury trial, jury fees must be posted 25 calendar days before the trial date. The mandatory settlement conference date is September 17, 2027 at 8:30 in Department C28. Parties are ordered to timely file settlement conference statements. Defendant shall give notice of this ruling.
57.	Williams v. Sevilla Homeowners Association 2021-01183871	Defendants Sevilla Homeowners Association, Optimum Professional Property Management, Inc., and Jason Hohalek’s motion to dismiss the lead case for failure to bring to trial within five years is DENIED. (Code Civ. Proc., § 583.310 [five-year statute]; <i>Brown v. Engstrom</i> (1979) 89 Cal.App.3d 513, 518–519 [“A Partial trial of an action will take the case out of the operation of [former] section 583 ... this does not mean that an issue of law or fact must be finally decided in order for a case to have been ‘brought to trial’ ... partial trial does not mean the complete trial of a single issue ... partial trial occurs if there is a Beginning of a trial;” capitalization in original.]

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		There is no dispute that trial in this consolidate action commenced prior to the expiration of the stipulated 5-year date of April 15, 2026. That trial was bifurcated to try certain issues to the court first, does not take this action out of the five-year statute. (<i>In re Marriage of Macfarlane & Lang</i> (1992) 8 Cal.App.4th 247, 253 [“once trial commences, the statute no longer applies, even though the proceedings amount only to a partial hearing;” see also <i>id.</i> at 254 [“In a nonjury case, the swearing of a single witness” is sufficient to “commence” trial].) Moving parties rely on <i>Sagi Plumbing v. Chartered Constr. Corp.</i> (2004) 123 Cal.App.4th 443, but this case is distinguishable, as it involved a bifurcated trial on completely separate construction projects, while the instant action involves common issues between the first and second phases. Plaintiffs’ request for judicial notice is GRANTED. (Evid. Code, § 452, subd. (d)(1).) Plaintiffs shall give notice of this ruling.
58.		
59.	Vizcarra v. Bevmol Inc. 2023-01348855	Defendant/Cross-Complainant/Cross-Defendant Canyon Plaza LLC’s Motion for Summary Judgment is GRANTED. (Code Civ. Proc. §437c.) A “party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact” (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850.) “A prima facie showing is one that is sufficient to support the position of the party in question.” (<i>Id.</i> at 851.) A defendant moving for summary judgment satisfies his or her initial burden by showing that one or more elements of the cause of action cannot be established or that there is a complete defense to the cause of action. (Code Civ. Proc., § 437c(p)(2).) The scope of this burden is determined by the allegations of the plaintiff’s complaint. (<i>FPI Development, Inc. v. Nakashima</i> (1991) 231 Cal.App.3d 367, 381–82 [pleadings serve as the outer measure of materiality in a summary judgment motion]; <i>580 Folsom Associates v. Prometheus Development Co.</i> (1990) 223 Cal.App.3d 1, 18–19 [respondent only required to defeat allegations reasonably contained in the complaint].)

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		A cause of action “cannot be established” if the undisputed facts presented by the defendant prove the contrary of the plaintiff’s allegations as a matter of law. (<i>Brantley v. Pisaro</i> (1996) 42 Cal.App.4th 1591, 1597.) Alternatively, a moving defendant can show that a cause of action “cannot be established” by submitting evidence—such as discovery admissions and responses—that the plaintiff does not have and cannot reasonably obtain evidence to establish an essential element of his cause of action. (<i>Aguilar v. Atlantic Richfield Co.</i> (1995) 25 Cal.4th at 854-55) In addition, if a plaintiff has pleaded several theories, the defendant has the burden of demonstrating there are no material facts requiring trial on any of them. (<i>Carlsen v. Koivumaki</i> (2014) 227 Cal.App.4th 879, 889.) If a defendant fails to meet this initial burden, the plaintiff need not oppose the motion and the motion must be denied. (<i>Binder v. Aetna Life Ins. Co.</i> (1999) 75 Cal.App.4th 832, 840.) Moving Party argues that it does not owe any duty of care since the loading dock where the alleged incident took place was part of the leased premises and Moving Party did not have possession or control, nor knowledge of any dangerous condition, such that it has no duty to Plaintiff. Moving Party attempts to meet its evidentiary burden by pointing to language and site plans included in the lease between Moving Party and BevMo! that purportedly show the loading dock was part of the leased premises. Specifically, Moving Party points to Lease Section 1.1.17 which defines “Premises” as “certain real property and improvements identified in the BLI, which is more particularly depicted on the Site Plan.” (SSUMF 8) Moving Party then cites to the Site Plans, attached as Exhibit B-1 and B-2 to the lease. (See SSUMF 10-11.) Absent from Moving Party’s showing is any testimony, affidavit, or other evidence that would permit a trier of fact to deduce from the site plans where the loading dock is located and that it is in fact part of the premises. In other words, the court can’t discern from the evidence where the loading dock is—and therefore can’t discern if it is part of the leased premises. And other parts of the lease agreement seem to indicate that the parties to the lease intended the loading dock to be excluded from the leased premises, which also raises questions for the court. (See, e.g., Lease Section 1.1.5 [“The Floor Area shall exclude any exterior loading

[illegible]